

TENTATIVE RULING(S) FOR August 12, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2518395

Hemenway vs City of Fontana

Tentative Ruling:

Before the Court is Plaintiff Robert Hemenway's motion to compel further responses to discovery. Although the motion appears on the Court's docket as three separate motions, it appears only a single motion was filed addressing request for admission, interrogatories, and requests for production of documents. Defendant opposes. No reply has been filed as of 11:00 a.m. on 8/10/26.

Analysis

This motion fails for a myriad of reasons. First, there is no supporting meet and confer declaration (or any declaration)—although the opposition papers indicate there were some unspecified meet and confer efforts. (See opposition, 2:20-21, 5:21-22.) Second, the separate

statement is procedurally defective because it fails to state the state the text of each response in violation of California Rules of Court, rule 3.1345(c)(2). Instead, the separate statement summarizes the responses by stating “Defendant objected on the grounds of vagueness, overbreadth, and relevance, and produced limited documents” or “Defendant provided a vague and incomplete response.” Substantively, Defendant provides supplemental responses served March 26, 2026 (Anderson Decl., ¶¶6; Exhs. G-I). Defendant contends these are not addressed in the moving papers, although this is difficult to discern in light of Plaintiff’s deficient separate statement. Nevertheless, the Court denies Plaintiff’s motion to compel further responses.

Sanctions. Both sides request sanctions. The Court denies Plaintiff’s request for sanctions since Defendant provided supplemental responses making the imposition of sanctions unjust. Further, Plaintiff is the losing party on his own motion.

Defendant requests \$2,500 in sanctions. However, defense attorney Kayleigh A. Anderson’s declaration does not state her rate or how many hours were incurred, instead contending her office has expended “several” hours so far and she will need an additional two hours to prepare for and attend the hearing. (Anderson Decl., ¶¶9.) This motion is so deficient that opposing it should have been very simple. Under the circumstances, the Court grants Defendant’s request for sanctions in the amount of \$900—inclusive of three hours of attorney time at \$300 per hour.

RULING

For all the reasons stated above, the Court rules as follows:

1. Denies Plaintiff’s motion to compel further responses to discovery;
2. Denies Plaintiff’s request for sanctions; and
3. Grants Defendant’s request for sanctions in the amount of \$900, payable in 7 business days from the date of this ruling.